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Case Number: 25STCV37140 Hearing Date: September 15, 2026 Dept: 730

Superior Court of California

County of Los Angeles

Department 730

NEDRA

DIONE SHANNON,

Plaintiff,

vs.

MARIAN

ARCENEUX, et al.

Defendants.

Case No.:

25STCV37140

Hearing

Date:

September

15, 2026

[TENTATIVE]

ORDER RE: DEFENDANTS' DEMURRER TO
COMPLAINT AND MOTION TO STRIKE PORTIONS OF COMPLAINT

I. BACKGROUND

Plaintiff Nedra Dione Shannon ("Shannon") rented and resided in a unit at 4206 Creed Ave, Los Angeles, California 90008 ("subject property"), a multi-unit residential rental property subject to the Los Angeles Rent Stabilization Ordinance and the Anti-Tenant Harassment Ordinance. Defendant Marian Arceneaux ("Arceneaux") served as the manager and managing agent for the subject property. Defendant Brown & Owens Family LP ("Brown") is a California domestic partnership that owns and operates the subject property. Defendants allegedly engaged in a continuing pattern of harassment and interference with Shannon's quiet enjoyment of the property from November 2020 to August 2025. Shannon sued Defendants for 12 causes of action, including breach of the implied warranty of habitability.

On

March 4, 2026, Defendants filed the instant demurrer and motion to strike. Shannon filed a late opposition. Defendants filed a reply.

II. LEGAL STANDARD on demurrer

As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not the evidence or facts alleged." (*E-Fab, Inc. v. Accountants, Inc. Servs.* (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (*Ibid.*) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

"The party against

whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in section 430.30, to the pleading on any one or more of the following grounds... (e) the pleading does not state facts sufficient to constitute a cause of action. (f) The pleading is uncertain. As used in this subdivision, "uncertain" includes ambiguous and unintelligible." (Code

Civ. Proc., § 430.10[1].)

“[D]emurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id. [AW15.1]; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Id., § 436(b).) The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (Id., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Id., § 437.)

III. DISCUSSION

Defendants demur to the seventh, ninth, and twelfth causes of action in Shannon's complaint, for negligence per se, intentional infliction of emotional distress, and battery, respectively, for failure to state facts sufficient to constitute a cause of action. Defendants also demur to the entire complaint on the basis it is uncertain. Defendants additionally demur to the first, second, third, and eleventh causes of action on the basis they are barred by litigation privilege. Defendants finally demur as to all causes of action asserted Arceneaux, as she acted solely within her own capacity as managing partner—not as an individual. Defendants also move to strike portions of the complaint.

A. Seventh

Cause of Action – Negligence Per Se

Defendants argue Shannon's

cause of action for negligence per se fails because Shannon did not add any independent factual or legal basis for relief. Rather, Shannon merely restates the same statutory violations of Civil Code sections 1954, 1940.2, 1942.5, 1927, 1941.1, 1941.3, Health & Safety Code section 17920.3, and Los Angeles Municipal Code sections 45.30, et seq. stated in the first through sixth causes of action as a separate negligence per se cause of action. Additionally, Defendants argue negligence per se is not a separate cause of action.

In the State of

California, negligence per se is not a separate tort from negligence; it is a form of negligence in which the pleading party alleges a statute creates the relevant duty of care. (Turner v. Seterus, Inc. (2018) 27 Cal.App.5th 516, 534; David v. Hernandez (2014) 226 Cal.App.4th 578, 584; Goldstein v. Superior Ct. (2023) 93 Cal.App.5th 736, 741.)

It is undisputed

Shannon's cause of action for negligence per se is based solely upon previously pled statutory duties. Mere acknowledgement of Evidence Code section 669 does not present a new statutory basis upon which Shannon may claim an additional cause of action. Because the doctrine of negligence per se is not a separate cause of action and Shannon has already stated direct causes of action under Civil Code sections 1954, 1940.2, 1942.5, 1927, 1941.1, 1941.3, Health & Safety Code section 17920.3, and Los Angeles Municipal Code sections 45.30 et seq., the cause of action for negligence per se is duplicative. A demurrer may be sustained when a cause of action is duplicative of another cause of action and "thus adds nothing to the complaint by way of fact or theory of recovery." (Rodrigues v. Campbell Industries (1978) 87 Cal.App.3d 494, 501; see Palm Springs Villas II Homeowners Association, Inc. v. Parth (2016) 248 Cal.App.4th 268, 290.) Shannon has failed to provide additional, independent factual basis for the negligence per se cause of action.

Accordingly, the

demurrer to the seventh cause of action is sustained.

B. Ninth

Cause of Action – Intentional Infliction of Emotional Distress

Defendants argue that the ninth

cause of action is subject to demurrer as Defendants' actions do not rise to the standard of "extreme and outrageous" required by intentional infliction of emotional distress ("IIED") claims. To state a claim for IIED, a plaintiff must allege: (1) extreme and outrageous conduct by the defendant; (2) intention to cause, or reckless disregard of the probability of causing, emotional distress; (3) severe emotional distress; and (4) actual and proximate causation. (Hughes v. Pair (2009) 46 Cal.4th 1035, 1050) The conduct must be "so extreme as to exceed all bounds of that usually tolerated in a civilized community." (Id. at 1051.) Liability for IIED does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities. (Crouch v. Trinity Christian Ctr. of Santa Ana, Inc. (2019) 39 Cal. App. 5th 995, 1007.)

The complaint specifically identifies the extreme and outrageous conduct as follows: "repeated unlawful and pretextual entries (including the locksmith entry of May 2, 2025); public multi-page postings taped to Plaintiff's doors and windows and a bright yellow packet deliberately obscuring her security camera; covering her camera outright; late-night and early-morning calls and voicemails (including around 3:00 a.m.); bringing police and a filming crew to Plaintiff's home absent any emergency; physically aggressive contact when Defendant shoved a door into Plaintiff in February 2024; a June 2024 doorway tussle causing Plaintiff physical injury to her hand; and serial unlawful detainer filings (3/27/24; 11/26/24; 8/27/25) initiated to intimidate and pressure Plaintiff to vacate." (Complaint ¶ 125.)

The Court finds Shannon has sufficiently pled extreme and outrageous conduct beyond the bounds of civilized society. Although the relationship between tenant and landlord is not always harmonious, allegations of physical violence, persisting phone calls during nighttime hours, entering Shannon's home without permission or need, and alleged unlawful attempts to evict Shannon all exist beyond those typically encapsulated in such a relationship.

Defendants rely on *Newby v. Alto Riviera Apartments* (1976) 60 Cal.App.3d 288, 297-98 to argue that courts have rejected IIED claims based on more aggressive behavior than Shannon alleged in her complaint. This reliance is misplaced. In *Newby*, the Court found the appellant presented substantial evidence that the respondents' behavior was outrageous and should have been submitted to a jury. (Ibid.) In *Newby*, the manager

shouted at the appellant and ordered her out of the apartment in three days. (Ibid.) Here, Shannon similarly alleges to have dealt with aggressive behavior from Defendants, including multiple unlawful detainer filings. Case law demonstrates Shannon has sufficiently pled facts to demonstrate extreme or outrageous behavior.

Accordingly,
the demurrer to the ninth cause of action is overruled.

C. Twelfth Cause of Action - Battery

Defendants argue the cause of action for battery is fatally vague and conclusory, as the complaint does not provide context regarding either of the alleged battery events. The elements of a battery are: (1) defendant intentionally did an act which resulted in a harmful or offensive contact with the plaintiff's person, (2) the plaintiff did not consent to the contact, and (3) the harmful or offensive contact caused injury, damage, loss, or harm to the plaintiff. (Piedra v. Dugan (2004) 123 Cal.App.4th 1483, 1495.)

The twelfth cause of action
alleges:

“On or
about February 16, 2024, [Arceneaux], acting individually and as
managing agent for Owner Defendant, intentionally and without consent snatched
a door from Shannon's grasp and forcefully pushed it into Shannon's back while
Shannon was standing on the porch. The contact was offensive, unconsented to,
and caused Shannon pain, fear, and humiliation in the presence of her children.

On or about
June 2024, during a purported “emergency” entry, [Arceneaux]
escalated a
confrontation at the doorway, resulting in a physical tussle in which Shannon's
hand was injured, requiring medical attention. The contact was intentional,
unprivileged, and caused Shannon physical harm.”

(Compl., ¶
147-148.)

Defendants specifically allege that, first, the February 16, 2024, event, lacks allegations regarding the context, whether it was during a disputed entry, who initiated the contact, whether Arceneaux touched Shannon, and whether an actual injury resulted. Additionally, the June 2024 allegation is deficient because it does not identify the date, location, or circumstances of the incident. However, a claim for battery does not require all of this information be provided at the pleading stage; it must merely provide sufficient factual allegations to satisfy all elements. Shannon clearly pled Arceneaux intentionally and without consent acted in such a manner resulting in offensive contact to Shannon. There are sufficient facts alleged to allow Defendants to investigate Shannon's claims into a clear battery claim. The June 2024 event is similarly sufficiently pled. Shannon clearly pled Arceneaux physically 'tussled' with Shannon, resulting in injury to Shannon.

Accordingly, the demurrer to the twelfth cause of action is overruled.

D. Uncertainty

Defendants contends that the complaint is uncertain because (1) it pleads 73 paragraphs of background; (2) its prayer for relief is overlapping and duplicative; and (3) it fails to specify the dates of the acts which establish a "continuing pattern" of conduct. A demurrer for uncertainty lies when a complaint is "ambiguous or unintelligible." (§ 430.10, subd. (f).) "A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.) "The objection of uncertainty does not go to the failure to allege sufficient facts." (*Brea v. McGlashan* (1934) 3 Cal.App.2d 454, 459.) "It goes to the doubt as to what the pleader means by the facts alleged." (*Id.*) "Such a demurrer should not be sustained where the allegations of the complaint are sufficiently clear to apprise the defendant of the issues which he is to meet." (*People v. Lim* (1941) 18 Cal.2d 872, 882.)

The Court disagrees with Defendants' assertion the complaint is uncertain. The complaint, in total, clearly outlines the basics of the facts and claims alleged. The complaint is

sufficiently intelligible to allow Defendants to investigate and reply to claims made by Shannon. Additional factual detail can be obtained through discovery. Therefore, the Court overrules the demurrer on this basis.

E. Litigation

Privilege

Defendants argue that the litigation privilege bars the first, second, third, and eleventh causes of action because they were based on filing unlawful detainer actions. These causes of action are for violation of Los Angeles Anti-Tenant harassment ordinance, retaliation, landlord harassment/illegal conduct, and unfair competition, respectively. To sustain a demurrer upon an affirmative defense, such as litigation privilege, the affirmative defense must clearly appear on the face of the complaint. (See *CrossTalk Productions, Inc. v. Jacobson* (1998) 65 Cal.App.4th 631, 635.) "A demurrer based on an affirmative defense cannot properly be sustained where the action might be barred by the defense, but is not necessarily barred." (*Ibid.*)

A privileged publication or broadcast is one made: In any (1) legislative proceeding, (2) judicial proceeding, (3) in any other official proceeding authorized by law, or (4) in the initiation or course of any other proceeding authorized by law and reviewable pursuant to Chapter 2 (commencing with Section 1084) of Title 1 of Part 3 of the Code of Civil Procedure. (Civ. Code § 47, subd. (b).) The usual formulation is that the privilege applies to any communication (1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that have some connection or logical relation to the action. (*Silberg v. Anderson* (1990) 50 Cal.3d 205, 212.)

A threshold issue in determining if the litigation privilege applies is whether the alleged injury arises from a communicative act or noncommunicative conduct. (*Action Apartment Assn., Inc. v. City of Santa Monica* (2007) 41 Cal. 4th 1232, 1248.) The key in determining whether the privilege applies is whether the injury allegedly resulted from an act that was communicative in its essential nature. (*Ibid.*) For example, the following acts have been deemed communicative and thus protected by the litigation privilege: attorney prelitigation solicitations of potential clients and subsequent filing of pleadings in the litigation, and testimonial use of the contents of illegally overheard conversation. The

following acts have been deemed noncommunicative and thus unprivileged: prelitigation illegal recording of confidential telephone conversations; eavesdropping on a telephone conversation; and physician's negligent examination of patient causing physical injury. (Ibid.) The court draws "a careful distinction between a cause of action based squarely on a privileged communication, such as an action for defamation, and one based upon an underlying course of conduct evidenced by the communication. (Ibid.) "As a general rule, the privilege ' "applies only to communicative acts and does not privilege tortious courses of conduct." ' (Id. at p. 1249.) The filing of a legal action is not "an independent, noncommunicative, wrongful act." (Id.)

Here, the affirmative defense does not clearly bar the causes of action. There are no protected communications from unlawful detainer actions included in or attached to the complaint. Moreover, while legal filings are communicative actions, the complaint uses the legal filings to allege that Shannon was harassed and pressured to vacate by the Defendants. (See Compl., ¶ 77.) The filing of unlawful detainer actions is listed as one of multiple allegedly harassing actions conducted by Defendants. (Ibid.) Thus, because the litigation privilege applies only to communicative acts, not tortious conducts, and must clearly bar the cause of action, the litigation privilege is not applicable for purposes of this demurrer.

Accordingly, the demurrer to first, second, third, and eleventh causes of action are overruled.

F. Arceneaux's Claims

Defendants argue that the complaint against Arceneaux is subject to demurrer because the complaint alleges she acted exclusively in her capacity as Managing General Partner of Brown & Owens LP, not as an individual. Defendants further argue that as a general partner acting within her authority, Arceneaux is not liable for the entity's obligations. Because Arceneaux's actions were within the scope of a managing general partner's authority, Defendant Brown & Owens Family LP is legally responsible, not Arceneaux, for causes of action one through eight, ten, and eleven.

However, Defendants misstate the allegations of the complaint. The complaint states that Arceneaux “is an individual who, at all relevant times, served as the manager and managing agent for the Subject Property on behalf of the owning limited partnership, with authority over access, repairs, inspections, notices, and rent-related communications affecting Shannon’s tenancy.” (Complaint ¶ 2.) Arceneaux

is identified as a “manager and managing agent” for the Property, rather than the manager of the Limited Partnership. Thus, Defendants have not established that the Complaint alleges that Arceneaux is a managing agent of the limited partnership, protected from individual liability. Accordingly, Defendants’ demurrer to the Complaint because Arceneaux is a general partner is overruled.

Defendants next argue that the statutory causes of actions under Los Angeles Municipal Code section 45.32, Civil Code section 1942.5 (retaliation), Civil Code section 1940.2 (harassment), Civil Code section 1954 (wrongful entry), and Civil Code section 1927 (quiet enjoyment) all impose obligations on the “owner” or the “landlord” of the premises, not an individual who manages the property in representative capacity. Because Brown is the owner and landlord it is the proper defendant for these statutory claims, not Arceneaux.

First, the first cause of action under Los Angeles Municipal Code section 45.32 defines a “landlord” as referring to “any owner, lessor, sublessor, manager, and/or person, including any firm, corporation, partnership, or other entity, having any legal or equitable right of ownership or possession or the right to lease or receive rent for the use and occupancy of a rental unit, and whether acting as principal or through an agent or representative or successor of any of the foregoing.” (Los Angeles Municipal Code § 45.32.) This definition of “landlord” includes a “manager”, such as Arceneaux. Therefore, the Court overrules the demurrer to the first cause of action.

Similarly, the fifth cause of action under Civil Code section 1927 does not specifically state it must be brought against a landlord. The section states: “An agreement to let upon hire binds the letter to secure to the hirer the quiet possession of the thing hired during the term of the hiring, against all persons lawfully claiming the same.” (Civ. Code § 1927.) Thus, the demurrer as to the fifth

cause of action is overruled on these grounds.

However,

the second cause of action under Civil Code section 1942.5, the third cause of action under Civil Code section 1940.2, and the fourth cause of action under Civil Code section 1954 all require liability from a landlord, which does not specifically include a property manager. The complaint does not plead that Arceneaux is a landlord. Instead, it states that owner and operator of the subject property is Brown. Furthermore, the second, third, and fourth causes of action are not sufficiently plead. To sufficiently plead claims under statutes that require landlord liability, Shannon would either need to plead that Arceneaux was a landlord or that Arceneaux was the alter ego of the limited partnership. Here, the complaint does neither. Therefore, the demurrer to the second, third, and fourth causes of action against Arceneaux is sustained.

G. Motion to Strike

Defendants request the Court strike all requests for punitive damages, treble damages, civil penalties, and statutory damages under Penal Code section 637.2, as well as Complaint ¶ 148 and the prayer for relief.

1.

Punitive Damages

Defendants argue that all requests for punitive damages must be stricken as to (1) Brown because no corporate ratification was alleged and (2) Arceneaux because no individual liability was alleged. Here, Shannon seeks punitive damages on the second, third, fourth, seventh, ninth, tenth, and twelfth causes of action. Because the demurrer to the seventh cause of action was sustained, the issue as to the seventh cause of action is moot as to both Defendants. Additionally, the issue is moot as to the second, third, and fourth causes of action for Arceneaux.

According
to section 3294(b):

“An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had

advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.”

When the defendant is a corporation, “the oppression, fraud, or malice must be perpetrated, authorized, or knowingly ratified by an officer, director, or managing agent of the corporation.” (Wilson v. Southern California Edison Company (2015) 234 Cal.App.4th 123, 164; see Civ. Code § 3294(b).) Civil Code section 3294 authorizes the recovery of punitive damages in non-contract cases where “the defendant has been guilty of oppression, fraud, or malice” (Civ. Code § 3294(a).) “‘Malice’ means conduct which is intended by the defendant to cause injury to the Shannon or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Id., § 3294(c)(1).) A Shannon must establish the defendant was aware of the probable dangerous consequences of his conduct and that he willfully and deliberately failed to avoid those consequences to support an award of punitive damages based on conscious disregard of the safety of others. (Penner v. Falk (1984) 153 Cal.App.3d 858, 867.) “‘Oppression’ means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (Civ. Code § 3294(c)(2).) “‘Fraud’ means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Id., § 3294(c)(3).)

Punitive damages require more than the mere commission of a tort. (See Taylor v. Superior Court (1979) 24 Cal.3d 890, 894-95.) Specific facts must be pleaded in support of punitive damages. (See Hillard v. A.H. Robins Co. (1983) 148 Cal.App.3d 374, 391-92.)

The Court agrees that the complaint contains no allegations identifying any officer, director, partner, or managing agent of the limited partnership who authorized, ratified, or engaged in alleged oppressive conduct on behalf of the entity. Arceneaux is alleged to be a manager of the

property, not a managing general partner. (Complaint ¶
2.) Therefore, the motion to strike punitive damages against Brown is granted.

As

for Arceneaux, the Court must consider whether punitive damages were sufficiently plead as for the non-moot causes of action, which are the ninth, tenth, and twelfth causes of action. The Court finds the complaint is sufficiently plead as to each of these causes of action. Each cause of action alleges conduct intended by Arceneaux to cause injury to the Shannon or despicable conduct which is carried on by Arceneaux with a willful and conscious disregard of the rights or safety of others. (Civ. Code § 3294, subd. (c)(1).) The ninth cause of action for IIED alleges conduct such as late-night calls, bringing police and a filming crew to Shannon's home absent emergency, physically aggressive conduct, and serial unlawful detainer filings intended to intimidate and pressure Shannon to vacate and which caused Shannon anxiety, humiliation, fear, sleep disturbance, and mental anguish. (Complaint, ¶¶ 125, 127.) The tenth cause of action for invasion of privacy alleges conduct such as a locksmith entering without notice, obstructing Shannon's security camera, surveilling Shannon's doors, and filming Shannon. The twelfth cause of action pleads allegations that on two different occasions Arceneaux physically harmed or injured Shannon. Thus, Shannon sufficiently plead allegations that Arceneaux intended to cause injury or was despicable conduct in disregard of the rights or safety of Shannon. Accordingly, the request to strike punitive damages against Arceneaux for the non-moot ninth, tenth, and twelfth causes of action is denied.

2. Duplicative / Uncertain / Speculative

Defendants argue that (1) treble damages must be stricken as duplicative and uncertain; (2) requests for civil penalties "per violation" must be stricken for lack of factual specificity; (3) ¶ 148 in the complaint must be stricken as vague and uncertain; (4) all statutory damages under Penal Code section 637.2 must be stricken as premature and speculative; and (5) the prayer for relief must be stricken due to duplicative damages.

In opposition, Shannon argues that (1) the request for treble damages is not duplicative; (2) that the civil penalty allegations are sufficiently specific; (3) paragraph 148 is sufficiently specific; (4) damages under Penal Code section 637.2 should not be stricken as specific dates and recordings are not yet known and will

likely be found during discovery; (5) Defendants' concern about overlapping damages is premature.

The Court finds Defendants' arguments unpersuasive and improper for a Motion to Strike. The standard for a motion to strike is not whether the pleading is duplicative, uncertain, or lacks specificity, as suggested by Defendants. Instead, the court may strike any irrelevant, false, or improper matter inserted in the pleading. (§ 436(a).) Defendants' contentions have not properly met the standard for a motion to strike. For this reason, Defendants' arguments are unpersuasive and the motion to strike is denied.

H. Leave to Amend

The burden is on the pleading party to show in what manner he can amend the complaint, and how that amendment will change the legal effect of the pleading. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349; *Hendy v. Losse* (1991) 54 Cal.3d 723, 742.) Shannon requests leave to amend, in part, on the basis that she can reframe the negligence per se cause of action and provide additional facts. As further allegations may be sufficient to cure the defects warranting sustaining of this demurrer and striking of the complaint, the Court grants leave to amend.

VII. CONCLUSION

Based on the foregoing, Shannon's demurrer is sustained in part and overruled in part and Shannon's Motion to Strike is granted in part and denied in part.

The demurrer to the seventh cause of action is sustained with 30 days leave to amend as to both Defendants. The demurrer to the ninth and twelfth causes of action is overruled. The demurrer to the second, third, and fourth causes of action as to Arceneaux is sustained with 30 days leave to amend. The demurrer to the first and fifth causes of action as to Arceneaux is overruled.

The Motion to Strike punitive damages against Brown is granted with 30 days leave to amend. The remainder of the Motion to Strike is denied.

Moving Party is ordered to give notice.

DATED:

September 15, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE

TAKE NOTICE:

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Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If a party intends to submit on this tentative ruling, the party must send an email to the court at SMCDEPT730@lacourt.org with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

statutory references are to the Code of Civil Procedure.